

Court No. - 4

Case :- WRIT - C No. - 39057 of 2019

Petitioner :- Mukesh Pratap Singh (Chauhan)

Respondent :- State Of U.P. And 03 Others

Counsel for Petitioner :- Arun Kumar Sharma

Counsel for Respondent :- C.S.C.,Baleshwar Chaturvedi

Hon'ble Bala Krishna Narayana,J.

Hon'ble Rohit Ranjan Agarwal,J.

As prayed, put up on Monday i.e. 2nd December, 2019.

Order Date :- 29.11.2019

SA

Court No. - 32

Case :- WRIT - C No. - 39057 of 2019

Petitioner :- Mukesh Pratap Singh (Chauhan)

Respondent :- State Of U.P. And 03 Others

Counsel for Petitioner :- Arun Kumar Sharma

Counsel for Respondent :- C.S.C., Baleshwar
Chaturvedi, Shrawan Kumar Tripathi

Hon'ble Shashi Kant Gupta, J.

Hon'ble Prakash Padia, J.

Heard learned counsel for the petitioner and Sri Shrawan Kumar Tripathi, learned counsel for the Electricity Department.

This writ petition, inter alia, has been filed for the following reliefs;

"I- Issue a writ, order or direction in the nature of certiorari quashing the impugned recovery (Under Section 3 of U.P. Government Electrical dues recovery 1958) dated 19.8.2019 issued by respondent no.4 of Rs.3,69,592/- plus collection charges and notices charges (Annexure no.12 to this writ petition).

ii. Issue a writ, order or direction in the nature of Mandamus directing to the respondent to stop proceedings in pursuance of the recovery dated 19.08.2019 (against the petitioner) til the hearing of the application dated 18.11.209 (Annexure No.13 to this writ petition) before consumer forum Mainpuri."

Heard learned counsel for the petitioner, learned counsel for the Electricity Department and perused the record.

The petitioner is raising dispute with regard to the correctness of the bill raised against him.

It is open to the petitioner to take recourse to the remedy provided to him under Clause 6.5 of the

U.P. Electricity Supply code, 2005.

We are not inclined to entertain this writ petition for reasons that there is availability of statutory remedy.

In case, the petitioner approaches the appropriate authority for redressal of his grievance within 10 days from today after making a deposit of Rs. 1 lac with the concerned electricity department, his application may be considered and decided by the said authority in accordance with law within 30 days from the date of receipt of a certified copy of this order by a speaking order after giving opportunity of hearing to the petitioner.

In case, the petitioner deposits the amount indicated above within the said period, the authority concerned will immediately restore the electricity connection of the petitioner.

Learned counsel for the petitioner undertakes to withdraw the application filed by the petitioner before the Consumer Forum forthwith.

It is further provided that the recovery of balance amount shall remain stayed until disposal of the said application provided the petitioner deposits Rs. 1 lac as observed hereinabove.

With the aforesaid observation, the writ petition is finally disposed of.

Order Date :- 2.12.2019

Pramod Tripathi